

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF VIKTOROV AND OTHERS v. RUSSIA

(Applications nos. 49592/14 and 5 others –
see appended list)

JUDGMENT

STRASBOURG

10 November 2022

This judgment is final but it may be subject to editorial revision.



In the case of Viktorov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*

Andreas Zünd*,*

Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 20 October 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. Some applicants also raised other complaints under the provisions of the Convention and Protocol No. 7.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

6. The applicants complained principally of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They relied, expressly or in substance, on Article 6 § 1 of the Convention, which reads as follows:

Article 6 § 1

"In the determination of ... any criminal charge against him, everyone is entitled to a fair ... hearing ... by an independent and impartial tribunal established by law."

7. The relevant principles of the Court's case-law concerning the requirement of impartiality under Article 6 § 1 of the Convention can be found in the leading case of *Karelin v. Russia* (no. 926/08, §§ 51-57, 20 September 2016, with further references). In that case the Court assessed the national rules of administrative procedure and concluded that the statutory requirements allowing for the national judicial authorities to consider an administrative offence case which falls within the ambit of Article 6 of the Convention under its criminal limb, in the absence of a prosecuting authority, was incompatible with the principle of objective impartiality set out in Article 6 of the Convention.

8. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

9. These complaints are therefore admissible and disclose a breach of Article 6 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants in applications nos. 78321/17, 8373/20, 9495/20, 9963/20 and 10150/20 submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Frumkin v. Russia*, no. 74568/12, §§ 81-142, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 178-91, 10 April 2018, concerning lack of a suspensive effect of an appeal and immediate execution of a sentence of administrative detention.

IV. REMAINING COMPLAINTS

11. As regards other complaints under Article 6 of the Convention about the unfairness of the administrative-offence proceedings, submitted by the applicants in applications nos. 78321/17, 9963/20 and 10150/20, the Court, having reached the conclusion about the lack of impartiality of the tribunal

under Article 6 of the Convention (see paragraph 9 above), does not consider it necessary to examine them separately.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

13. Regard being had to the documents in its possession and to its case-law (see, in particular, *Kuratov and Others v. Russia* [Committee], nos. 24377/15 and 2 others, 22 October 2019), the Court considers it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

14. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the absence of the prosecuting party in administrative-offence proceedings and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to deal separately with the remainder of the applicants' complaints under Article 6 of the Convention concerning the administrative-offence proceedings against them;

3. *Holds* that these applications disclose a breach of Article 6 § 1 of the Convention concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings;

4. *Holds* that there has been a violation of the Convention and its Protocol as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

6. *Dismisses* the remainder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 10 November 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 6 § 1 of the Convention
(lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	49592/14 23/06/2014	**Gennadiy Savelyevich VIKTOROV** 1954	Viktorova Yelena Alekseyevna Ladozhskaya	administrative fine of RUB 500	22/08/2014, Supreme Court of Russia		1,000
2.	78321/17 02/11/2017	**Yuriy Vladimirovich VLASOV** 1976	Popkov Aleksandr Vasilyevich Sochi	detention of 3 days detention of 3 days	11/05/2017, Krasnodar Regional Court 03/05/2017, Krasnodar Regional Court	Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 179-191, 10 April 2018; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Arrest of the applicant at a manifestation on 26/03/2017, his subsequent 2 sentences to detention by Krasnodar Regional Court, on 11/05/2017, article 19.3 § 1 of CAO; and by the Krasnodar Regional Court, on 03/05/2017, article 20.2 § 6.1 of CAO	3,900
3.	8373/20 29/01/2020	**German Alekseyevich NECHAYEV** 1997	Memorial Human Rights Centre Moscow	fine of RUB 15,000	Moscow City Court 28/08/2019	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019, fine of RUB 15,000, Article 20.2 § 5 of CAO, Moscow City Court, 28/08/2019	3,900
4.	9495/20 12/02/2020	**Yuriy Gennadyevich MARTYNOVICH** 1987	Memorial Human Rights Centre Moscow	fine of RUB 10,000	20/08/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 12/06/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours (see	3,900

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						Denisenko v. Russia [Committee], no. 18322/05, 14 February 2017); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation in support of Ivan Golunov Moscow, Strastnoy boulevard on 12/06/2019, Article 20.2 § 6.1 of CAO, fine of RUB 10.000, Moscow City Court, 20/08/2019	
5.	9963/20 05/02/2020	**Kirill Dmitriyevich ZHARIKOV** 1999	Anosova Lidiya Sergeyevna Orekhovo-Zuyevo	fine of RUB 15,000	06/08/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Unlawful (unjustified) arrest on 12 June 2019 and detention in excess of 3 hours for the sole purpose of drafting a record of administrative offence (see *Frumkin v. Russia*, no. 74568/12, §§ 147-152, Reports of Judgments and Decisions 2016 (extracts)); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation in support of Ivan Golunov Petrovka str., Moscow on 12/06/2019, Article 20.2 § 6.1, fine of RUB 15,000, Moscow City Court, 06/08/2019	3,900
6.	10150/20 31/01/2020	**Maksim Dmitriyevich ZEMTSOV** 1996	Memorial Human Rights Centre Moscow	fine of RUB 10,000	26/08/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 12/06/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation in support of Ivan Golunov in Moscow on 12/06/2019, Article 20.2 § 6.1 of CAO, fine of RUB 10,000, Moscow City Court, 26/08/2019	3,900

[1] Plus any tax that may be chargeable to the applicants.